

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Criminal Appeal No.10577 of 2023

In the matter of:

An appeal under Section 28 of the
Nari-O-Shishu Nirjatan Damon Act,
2000 (Amendment upto 2023)

-And-

In the matter of:

Md. Faruque Sardar

..... Accused-appellant

-Versus-

The State

..... Respondent

Mr. Muhammad Rokun Uddin, Advocate

..... For the accused-appellant

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

..... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 31st January, 2024

This is an appeal under Section 28 of the
Nari-O-Shishu Nirjatan Damon Act, 2000
(Amended in 2003)

Md. Muhammad Rokun Uddin, learned
Advocate for the accused-appellant prays for
his bail on the ground of long custody since
02.11.2023.

Mr. Sujit Chatterjee, learned Deputy
Attorney General for the state raises

objection against granting of bail to the appellants.

It turns out from the record that in this case under Sections 9(3) of the Nari-O-Shishu Nirjaton Damon Ain, 2000 (Amended in 2003) the accused appellant allegedly raped the informant's daughter.

On consideration of above materials on record we hold that the ends of justice will be met if instead of granting bail to the accused-appellant at this point of time a direction is issued upon the trial Court for expeditious disposal of the case or in default consider his petition for bail.

Accordingly, we are directing the learned Judge, Nari-O-Shishu Nirjaton Damon Tribunal No.5, Chattogram to conclude the trial of the case within 6(six) months from the date of receipt of this order or in default consider the petition for bail of the accused-appellant, if any, sympathetically and in accordance with law.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

Md. Masudur Rahman
Bench Officer